

CARDHOLDER REBUTTAL — CHARGEBACK FX SHORTFALL

Response to American Express's position of June 11, 2026 — for CFPB Complaint #260611-34004878

Cardholder:	William J. Marceau
Email:	wmarceau@marceausolutions.com
Account:	AmEx Blue Business Cash, ending 21007 (employee card 21049)
AmEx Cases:	D-93497818 (card 1007) / D-93497819 (card 1049) & Reason Code 4553
Merchant:	Propane Fitness Ltd, Newcastle, UK (Co. 07779096)
Amount owed:	\$2,271.66 USD (foreign-exchange conversion shortfall)
Date:	Thursday, June 11, 2026

CORE POSITION

American Express resolved this dispute in my favor through a **forced chargeback** (reason code 4553) and credited the £6,300 principal. American Express — not the merchant — then converted that reversal to U.S. dollars at an implied **\$1.00/£ parity rate**, while it had posted the original charge at **\$1.3511/£**. That leaves **\$2,271.66** uncredited. On June 11, 2026, a supervisor (Michael, ID 7273100) stated American Express will not credit this amount directly, directed me to a merchant “refund completion form,” and asserted that declining it would breach my contract with the merchant. Each of those positions is addressed and refuted below.

1. THIS WAS A FORCED CHARGEBACK — AMERICAN EXPRESS CONTROLS THE CONVERSION

The dispute documentation on file carries American Express **chargeback reason code 4553** and consists of the merchant's **representment (chargeback-defense) filings** arguing the “chargeback... is invalid.” Reason codes and representments exist only inside the chargeback rail; a voluntary merchant refund has neither. This was therefore a forced chargeback in which **American Express debited the merchant in GBP and credited me on my USD account** — meaning the GBP→USD conversion of the reversal was American Express's own act, not the merchant's.

American Express applied **two different rates to the same transaction**: it converted the charge at \$1.3511/£ and the reversal at \$1.00/£. A \$1.00/£ parity rate has never existed in the foreign-exchange market. The merchant's liability was fixed in pounds (£3,150 per card); only American Express converts that to dollars. Directing me to obtain the remainder from the merchant is inconsistent with the chargeback American Express itself processed.

2. DECLINING THE MERCHANT FORM DOES NOT BREACH ANY CONTRACT

American Express is not a party to my contract with the merchant and has no standing to enforce the merchant's terms against me; my dispute rights arise under my Cardmember Agreement and the federal Fair Credit Billing Act. Independently, the merchant's own contract defeats this argument:

(a) The contract's own terms exempt statutory rights.

The merchant's no-chargeback clause (§7.5) and mandatory-process clause (§12.5(B)) each carve out their own application. §12.5(B) states the procedure “**does not apply to... statutory rights that cannot be waived by agreement,**” and §7.3 limits refund exclusions to those “**save as provided by law.**” A UK consumer's right to a remedy for a service not-as-described or misrepresented (Consumer Rights Act 2015; Misrepresentation Act 1967) is a non-waivable statutory right. By the contract's own language, the anti-chargeback terms do not reach my claim.

(b) The merchant breached first and withheld the very process now demanded.

§12.5(A) required the merchant to acknowledge and substantively respond within 7 days; §7.4 required it to **provide the refund-request form “on request.”** I raised a refund on the merchant's own platform with my assigned coach on **March**

4, then sent formal written refund demands on **March 6, 7, 12, and 13, 2026, each copied to admin@propanefitness.com**. The merchant did not provide its refund form until **March 16** — the same time the dispute registered with American Express — and the salesperson who collected the £6,300 replied only: *“This has nothing to do with me, mate.”* A merchant that withholds its own refund process cannot condition my refund on that process.

(c) American Express already adjudicated entitlement.

Having credited the £6,300, American Express has already determined I was entitled to a refund. It cannot grant a partial recovery and then route the currency remainder — a remainder **its own conversion created** — back to a merchant I have already won a chargeback against.

3. THE UNDERLYING CHARGEBACK IS VALID — ON THE MERCHANT'S OWN DOCUMENTS

The misrepresentation is established by the merchant's own filings, not my recollection. The salesperson's closing email promised:

*“Dedicated 1-2-1 coach for 12 weeks. Private thread for messages, voice notes, feedback and **calls** to customise the process to your business.”*

The merchant's Terms then define that same “one-on-one” service as a messaging channel (“voice notes, document reviews, messages”) plus recurring group “coaching clinics... via Zoom.” The merchant's chargeback rebuttal nonetheless claims I received **“Individual Zoom calls”** and **“accessed all services”** — yet the same filing includes, as the merchant's own Exhibit E, my contemporaneous March 4 messages:

“it does not show me any available live calls or the ability to access the content” · “it really seems like I just got scammed.”

The merchant filed both the claim and the proof it is false. The chargeback was correctly resolved in my favor; what remains is solely American Express's currency-conversion shortfall.

4. THE AMOUNT — RECONCILED TO THE PENNY

	Per Card	Both Cards
Propane charge (Mar 2, posted by AmEx @ \$1.3511/£)	\$4,255.97	\$8,511.94
Foreign-transaction fee	\$114.91	\$229.82
TOTAL CHARGED	\$4,370.88	\$8,741.76
AmEx credit — principal (reversal posted @ \$1.00/£)	-\$3,150.00	-\$6,300.00
AmEx credit — partial FX fee	-\$85.05	-\$170.10
TOTAL CREDITED	-\$3,235.05	-\$6,470.10
SHORTFALL STILL OWED	\$1,135.83	\$2,271.66

My entire current statement balance (\$2,234.81, June 10 statement) is composed of this unrefunded amount: \$2,271.66 uncredited dispute, less \$36.85 net of all other activity. Crediting \$2,271.66 brings the account to zero.

5. QUESTIONS AMERICAN EXPRESS MUST ANSWER IN WRITING

1. Was the £6,300 credit a forced chargeback (American Express debited the merchant) or a voluntary merchant refund? The reason-code-4553 representment filings indicate the former.
2. At what exchange rate and on what date was the £6,300 reversal converted to USD, and on what basis was it \$1.00/£ when the charge was posted at \$1.3511/£?
3. If the position is that the merchant short-remitted, produce documentation of what the merchant actually submitted.

4. Why were the foreign-transaction fees only partially reversed (\$85.05 of \$114.91 per card) — an American Express-side figure regardless of the merchant?

6. RESOLUTION REQUESTED

Post a corrective credit of **\$2,271.66** to cases D-93497818 and D-93497819, bringing the balance to zero, with written confirmation. Alternatively, provide a written denial citing the specific rule under which a £3,150 charge posted at \$1.3511/£ may be refunded at a \$1.00/£ parity rate. I am not completing any merchant form, am not withdrawing either case, and continue to pay the statement minimum without waiving this dispute.

Respectfully submitted,

William J. Marceau

wmarceau@marceausolutions.com · Naples, Florida · June 11, 2026

Cases D-93497818 / D-93497819 · CFPB #260611-34004878 · FX shortfall \$2,271.66 · Regulatory refs CMAE2600101, RF26040189625C · June 11, 2026